

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ
ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿಯವರ ಕಛೇರಿ, ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ, ಕರ್ನಾಟಕ ಇಂಜಿನಿಯರಿಂಗ್ ಸಂಶೋಧನಾ ಕೇಂದ್ರ, ಕೃಷ್ಣರಾಜಸಾಗರ.

ದಿನಾಂಕ: 08-10-2020

ಐ.ಎಫ್.ಟಿ. ಸಂಖ್ಯೆ: 09/2020-21

ಬೆಂಗಳೂರು ಪ್ರಕಟಣೆ
(ಇ-ಪ್ರೊಕ್ಯೂರ್‌ಮೆಂಟ್ ಮೂಲಕ)

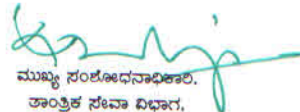
- ಈ ಕೆಳಕೋಷ್ಟಕದಲ್ಲಿ ನಮೂದಿಸಿರುವ ಸರಕುಗಳನ್ನು ಅರ್ಹ ಸರಬರಾಜುದಾರರಿಂದ ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿಗಳು, ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ, ಕರ್ನಾಟಕ ಇಂಜಿನಿಯರಿಂಗ್ ಸಂಶೋಧನಾ ಕೇಂದ್ರ, ಕೃಷ್ಣರಾಜಸಾಗರ ಇವರಿಂದ ಬೆಂಗಳೂರು ಅನ್ನು ಆಹ್ವಾನಿಸಲಾಗಿದೆ. ಕರ್ನಾಟಕ ಸಾರ್ವಜನಿಕ ಸಂಗ್ರಹಣೆಗಳಲ್ಲಿ ವಾರದರ್ಶಕ ಅಡ್ಡದೇಶ 2000 ಪ್ರಕಾರ ಆಯ್ಕೆ 2000 ರ ನಿಯಮದಂತೆ ಕೆಳಕಂಡ ಸೇವೆಗೆ ಸ್ಪಂದಿಸಲು ಬೆಂಗಳೂರು ಡಾಕ್ಯುಮೆಂಟ್ ಕೆ.ಜಿ-1 ದಸ್ತಿಯ ಕಾರ್ಮಿಕ ಇಲಾಖೆಯಲ್ಲಿ ನೋಂದಾಯಿತರಾದ ಸರಬರಾಜುದಾರರಿಂದ ಇ-ಪ್ರೊಕ್ಯೂರ್‌ಮೆಂಟ್ ಪೋರ್ಟಲ್ ಮುಖಾಂತರ ಬೆಂಗಳೂರು ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ರಾಜ್ಯವಾರದ ಪರವಾಗಿ ಈ ಕೆಳಗಡೆ ಸಹಿ ಮಾಡಿರುವವರಿಂದ ಆಹ್ವಾನಿಸಲಾಗಿದೆ. ಅರ್ಹ ಗುತ್ತಿಗೆದಾರರು ಇ-ಪ್ರೊಕ್ಯೂರ್‌ಮೆಂಟ್ ಪೋರ್ಟಲ್ <http://eproc.karnataka.gov.in> ಮುಖಾಂತರ ಭಾಗವಹಿಸಬಹುದು. ಸರಬರಾಜುದಾರರು ಬೆಂಗಳೂರು ತಿಳುವಳಿಕೆ ಪತ್ರದ ಅಧ್ಯಾಯ-3 ರನ್ವಯ ಅರ್ಹತೆ ವಿವರಗಳನ್ನು ಗಮನಿಸತಕ್ಕದ್ದು.
- ಬೆಂಗಳೂರು ಡಾಕ್ಯುಮೆಂಟ್ ಇ-ಪ್ರೊಕ್ಯೂರ್‌ಮೆಂಟ್ ಮೂಲಕ ದಿನಾಂಕ: 13-10-2020 ರಿಂದ 11-11-2020 ರವರೆಗೆ ಡೌನ್‌ಲೋಡ್ ಮಾಡಿಕೊಳ್ಳಬಹುದಾಗಿರುತ್ತದೆ.
- ಬೆಂಗಳೂರು, ಕೋಷ್ಟಕದಲ್ಲಿ ಆಯಾ ಸರಕುಗಳನ್ನು ಒದಗಿಸುವ ಕಾಮಗಾರಿಗಳ ಮುಂದೆ ನಮೂದಿಸಿರುವ/ ನಿಗದಿಪಡಿಸಿರುವ ಇ.ಎಂ.ಡಿ ಯೊಡನೆ ಇರತಕ್ಕದ್ದು. ಇ.ಎಂ.ಡಿ ನಮೂನೆಯು, ಬೆಂಗಳೂರು ದಸ್ತಾವೇಜಿನಲ್ಲಿ ನಮೂದಿಸಿರತಕ್ಕ ಯಾವುದಾದರೊಂದು ರೂಪದಲ್ಲಿರತಕ್ಕದ್ದು. ಹಾಗೂ ಇ.ಎಂ.ಡಿಯು ಬೆಂಗಳೂರು ಮಾನ್ಯತಾ ಅವಧಿಯ ನಂತರವೂ 45 ದಿನಗಳವರೆಗೆ ಚಲಾವಣೆಯಲ್ಲಿರತಕ್ಕದ್ದು.
- ಬೆಂಗಳೂರು ದಿನಾಂಕ: 11-11-2020 ರ ಸಂಜೆ 4:30 ಗಂಟೆಯೊಳಗೆ ಇ-ಪ್ರೊಕ್ಯೂರ್‌ಮೆಂಟ್ ನಲ್ಲಿ ಭರಿಸತಕ್ಕದ್ದು. ಬೆಂಗಳೂರು ಬಿಡ್‌ಗಳನ್ನು 12-11-2020 ರಂದು ಸಂಜೆ 5-30 ಗಂಟೆಗೆ ತೆರೆಯಲಾಗುವುದು. ಬೆಂಗಳೂರುಗಳನ್ನು ತೆರೆಯುವ ದಿನವು ರಜಾ ದಿನ/ಕಛೇರಿ ತೆರೆಯದ ದಿನ ಆದಲ್ಲಿ, ಬೆಂಗಳೂರುಗಳನ್ನು ತೆರೆಯುವ ದಿನಾಂಕವನ್ನು ಮುಂದಿನ ಕಛೇರಿ ತೆರೆಯುವ ದಿನಾಂಕ, ಅದೇ ಸಮಯ/ಸ್ಥಳ ಎಂದು ತಿಳಿಯಬಹುದಾಗಿರುತ್ತದೆ.
- ಇತರೆ ವಿವರಗಳನ್ನು ಬೆಂಗಳೂರು ದಸ್ತಾವೇಜಿನಲ್ಲಿ ಕಾಣಬಹುದಾಗಿದೆ.

ಕೋಷ್ಟಕ

ಕ್ರಮ. ಸಂಖ್ಯೆ	ಕೆಲಸದ ಹೆಸರು	ಬೆಂಗಳೂರು ಮೌಲ್ಯ (ರೂ.ಗಳಲ್ಲಿ)	ಇಎಂ.ಡಿ (ರೂ.ಗಳಲ್ಲಿ)	ಸರಕುಗಳನ್ನು ಪೂರೈಕೆಲು ನಿಗದಿಪಡಿಸಿರುವ ಅವಧಿ
1	2	3	4	5
1	Supply of Horizontal Autoclave Machine to Water Quality Lab located at KERS,K.R.Sagara for the year 2020-21.(Under NHP)	354000	9000	45 days
2	Supply of Microprocessor Flame Photometer to Water Quality Lab located at KERS,K.R.Sagara for the year 2020-21.(Under NHP)	64900	1700	30 days

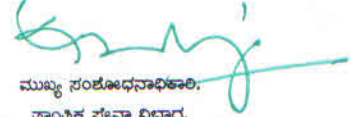
-ಸಿಬ್ಬಂದಿಗಳು:-

- ಕಾರಣ ನೀಡದೇ ಎಲ್ಲಾ ಅಥವಾ ಯಾವುದೇ ಬೆಂಗಳೂರುಗಳನ್ನು ಒಪ್ಪಿಕೊಳ್ಳುವ ಅಥವಾ ತಿರಸ್ಕರಿಸುವ ಹಕ್ಕನ್ನು ಈ ಕೆಳಗೆ ಸಹಿ ಮಾಡಿರುವವರು ಹೊಂದಿರುತ್ತಾರೆ.
- ಹೆಚ್ಚಿನ ವಿವರಗಳು ಬೇಕಾದಲ್ಲಿ ಕಛೇರಿಯ ಕೆಲಸದ ವೇಳೆಯಲ್ಲಿ ಪಡೆಯಬಹುದು. ಸಾರ್ವಜನಿಕ ರಜಾವಾದರೆ ಮಾರನೆಯ ದಿನವೇ ಈ ದಿನಾಂಕದ ಬದಲು ಅನ್ವಯಿಸುತ್ತದೆ ಎಂದು ತಿಳಿಯತಕ್ಕದ್ದು.
- ಈ ಮೇಲ್ಕಂಡ ಸರಕುಗಳನ್ನು ಸರಬರಾಜು ಮಾಡುವ ಕಾಮಗಾರಿಯ ಮುಂದೆ ನಮೂದಿಸಿದ ಬೆಂಗಳೂರುಗಿಟ್ಟ ಅಂದಾಜು ಮೊತ್ತ ಹಾಗೂ ಇ.ಎಂ.ಡಿ ಯಲ್ಲಿ ಯಾವುದೇ ಬದಲಾವಣೆ ಇದ್ದಲ್ಲಿ ಬೆಂಗಳೂರು ದಾಖಲೆಯಲ್ಲಿ ನಮೂದಿಸಿದ ಬೆಂಗಳೂರುಗಿಟ್ಟ ಮೊತ್ತ ಮತ್ತು ಇ.ಎಂ.ಡಿ ಮೊತ್ತವು ಅಂತಿಮವಾಗಿರುತ್ತದೆ.
- ಬೆಂಗಳೂರುಗಿಟ್ಟ ಮೊತ್ತವು ಜಿ.ಎಸ್.ಟಿ.ಯನ್ನು ಒಳಗೊಂಡಿದೆ.


ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿ,
ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ,
ಕರ್ನಾಟಕ ಇಂಜಿನಿಯರಿಂಗ್ ಸಂಶೋಧನಾ ಕೇಂದ್ರ
ಕೃಷ್ಣರಾಜಸಾಗರ

ಪ್ರತಿಯನ್ನು:

- 1 ಕಾರ್ಯದರ್ಶಿಗಳು, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ವಿಕಾಸ ಸೌಧ, ಬೆಂಗಳೂರು ಇವರ ಅಮೋಹನಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
- 2 ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ಜಲಸಂಪನ್ಮೂಲ ಅಭಿವೃದ್ಧಿ ಸಂಸ್ಥೆ, ಬೆಂಗಳೂರು ಇವರ ಮಾಹಿತಿಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
- 3 ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ಇಂಜಿನಿಯರಿಂಗ್ ಸಂಶೋಧನಾ ಕೇಂದ್ರ, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಅಮೋಹನಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
- 4 ಪ್ರಾಂಶುಪಾಲರು, ಇಂಜಿನಿಯರಿಂಗ್ ಸಿಬ್ಬಂದಿ ಕಾಲೇಜು, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಅಮೋಹನಗಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.
- 5 ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿ, ಭೂ.ತಂ. ಮತ್ತು ತ.ಇಂ ವಿಭಾಗ, ಕೆಇಆರ್‌ಎಸ್, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ತಮ್ಮ ಕಛೇರಿಯ ಸೂಚನಾ ಫಲಕದಲ್ಲಿ ಹಾಕಲು ಕೋರಿದೆ.
- 6 ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿ, ಕರಾವಳಿ ಇಂಜಿನಿಯರಿಂಗ್ ವಿಭಾಗ, ಕೆಇಆರ್‌ಎಸ್, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ತಮ್ಮ ಕಛೇರಿಯ ಸೂಚನಾ ಫಲಕದಲ್ಲಿ ಹಾಕಲು ಕೋರಿದೆ.
- 7 ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿ, ಜಲಶಾಸ್ತ್ರ ವಿಭಾಗ, ಕೆಇಆರ್‌ಎಸ್, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಮಾಹಿತಿಗಾಗಿ ಹಾಗೂ ತಮ್ಮ ಕಛೇರಿಯ ಸೂಚನಾ ಫಲಕದಲ್ಲಿ ಹಾಕಲು ಕೋರಿದೆ.
- 8 ಸಂಶೋಧನಾಧಿಕಾರಿ, ಕಾಮಗಾರಿ ಶಾಖೆ, ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ, ಕೆಇಆರ್‌ಎಸ್, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಮಾಹಿತಿಗಾಗಿ.
- 9 ಸಂಶೋಧನಾಧಿಕಾರಿ, ಕಾಂಕ್ರೀಟ್ ಮತ್ತು ಪೊಷೋಲಾನಾ ಶಾಖೆ, ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ, ಕೆಇಆರ್‌ಎಸ್, ಕೃಷ್ಣರಾಜನಗರ ಇವರ ಮಾಹಿತಿಗಾಗಿ.
- 10 ಲೆಕ್ಕ ಪರಿಶೋಧನಾಧಿಕಾರಿ, ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ, ಇವರ ಮಾಹಿತಿಗಾಗಿ.
- 11 ಸೂಚನಾ ಫಲಕಕ್ಕೆ.
- 12 ಕಛೇರಿ ಕಡತಕ್ಕೆ.



ಮುಖ್ಯ ಸಂಶೋಧನಾಧಿಕಾರಿ.

ತಾಂತ್ರಿಕ ಸೇವಾ ವಿಭಾಗ.

ಕರ್ನಾಟಕ ಇಂಜಿನಿಯರಿಂಗ್ ಸಂಶೋಧನಾ ಕೇಂದ್ರ

ಕೃಷ್ಣರಾಜನಗರ

..0Annexure I
K/G - 1

GOVERNMENT OF KARNATAKA

WATER RESOURCES DEPARTMENT

OFFICE OF THE CHIEF RESEARCH OFFICER,
 TECHNICAL SERVICES DIVISION.
 KARNATAKA ENGINEERING RESEARCH STATION,
 KRISHNARAJA SAGARA.

Telephones: 08236-297014

Fax: 08236-257223

TENDERS FOR
Supply of Microprocessor Flame Photometer to water
quality lab located at KERS, K.R. Sagara for the year
2020-21 Under NHP

TENDER REFERENCE : CRO /TSD/KERS/ TENDER -09/2020-21;
 Dt : 08-10-2020

DATE OF COMMENCEMENT OF : *Please refer e-procurement portal*
 SALE OF TENDER DOCUMENT

LAST DATE FOR SALE OF TENDER: *Please refer e-procurement portal*
 DOCUMENT

LAST DATE AND TIME FOR : *Please refer e-procurement portal*
 RECEIPT OF TENDERS

TIME AND DATE OF OPENING OF : *Please refer e-procurement portal*
 TENDERS

PLACE OF OPENING OF TENDERS :
 OFFICE OF THE CHIEF RESEARCH OFFICER,
 TECHNICAL SERVICES DIVISION, KARNATAKA
 ENGINEERING RESEARCH
 STATION, KRISHNARAJA SAGARA.

ADDRESS FOR COMMUNICATION :
 OFFICE OF THE CHIEF RESEARCH OFFICER,
 TECHNICAL SERVICES DIVISION, KARNATAKA
 ENGINEERING RESEARCH STATION,
 KRISHNARAJA SAGARA SRIRANGAPATNA Tq,
 MANDYA Dist. PIN CODE- 571 607

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TENDERS FOR
Supply of Microprocessor Flame Photometer to water
quality lab located at KERS,K.R.Sagara for the year
2020-21 Under NHP

SECTION I. INVITATION FOR TENDERS (IFT)

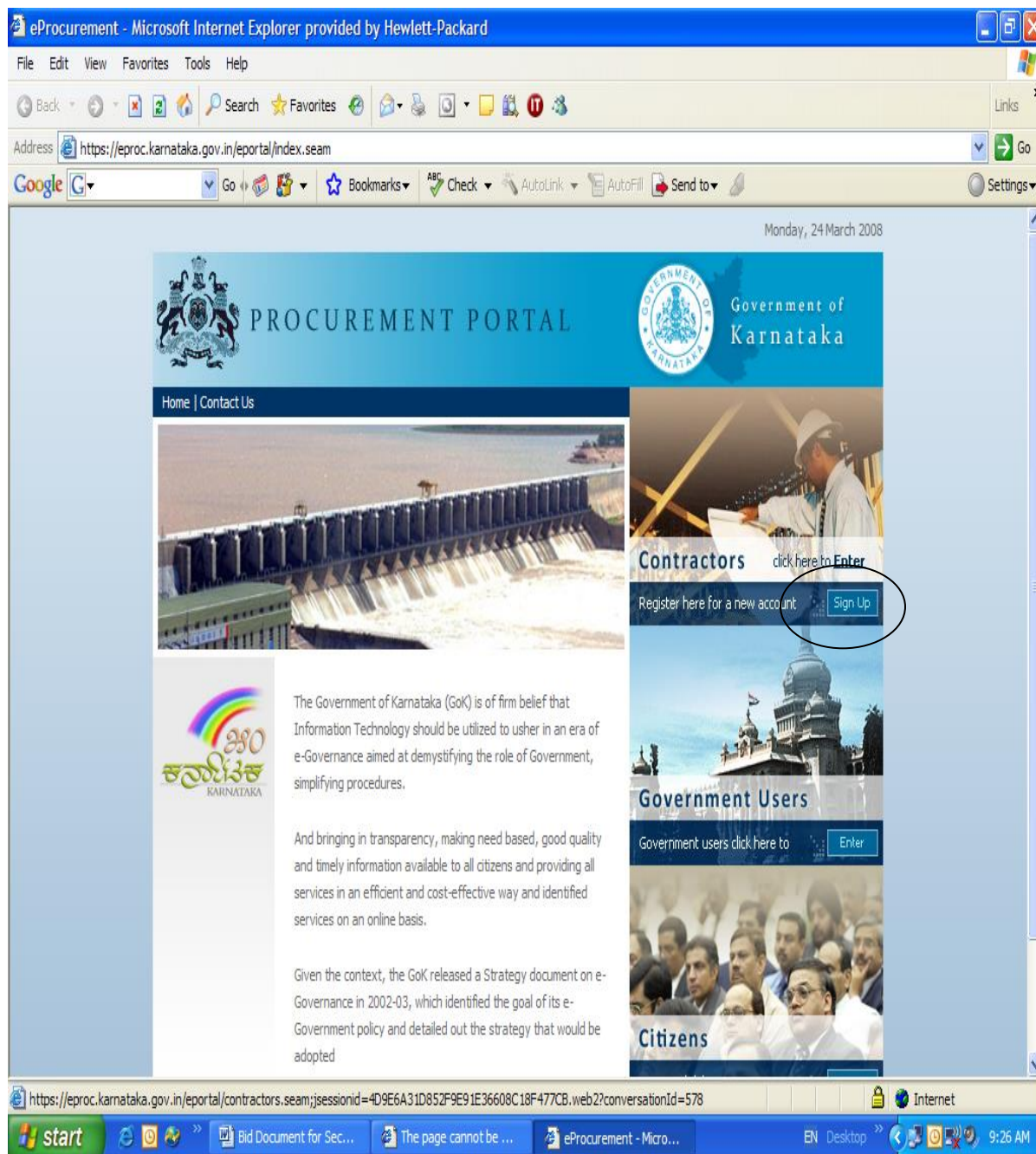
Date :

IFT No. :

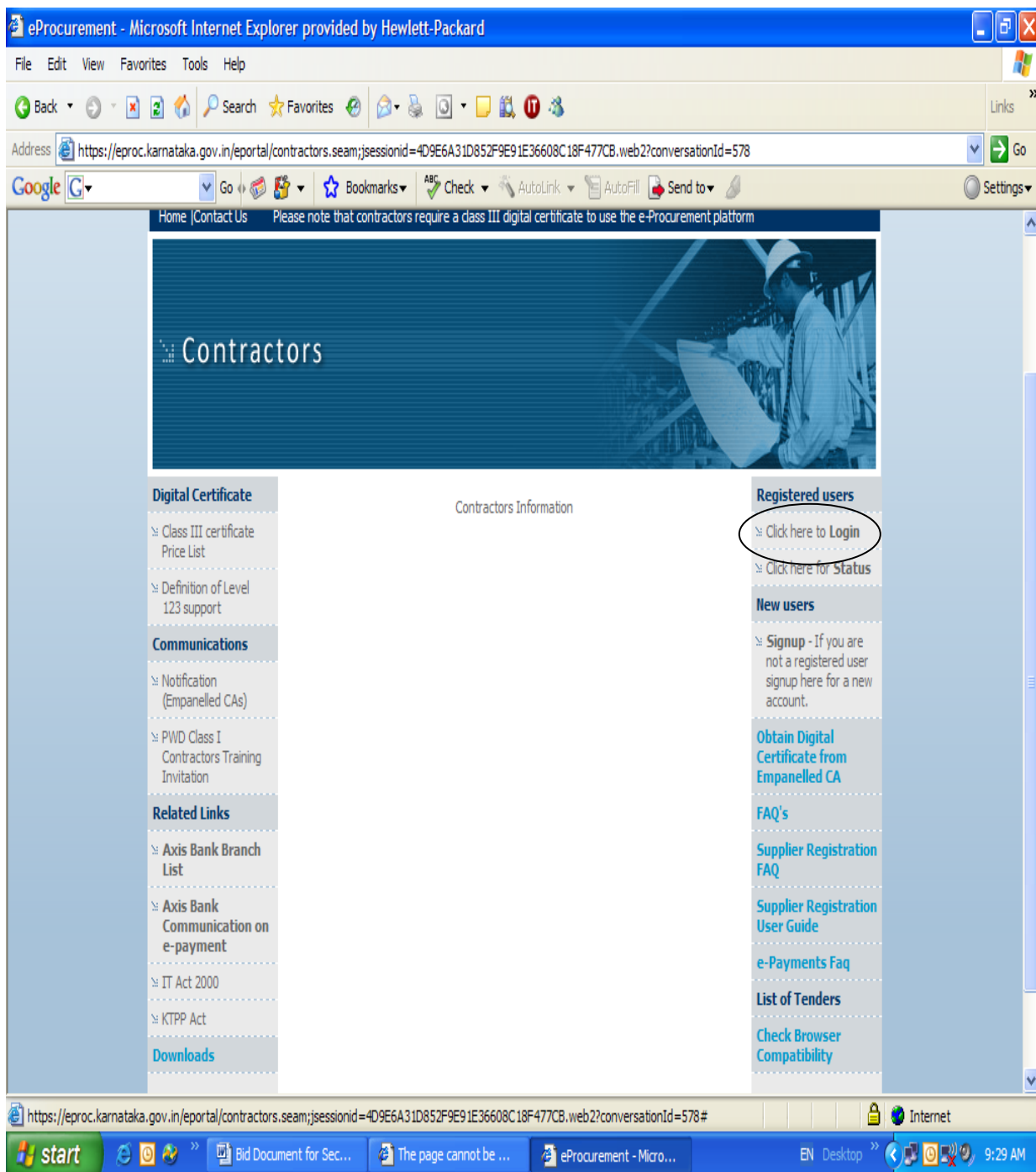
1. The CHIEF RESEARCH OFFICER, TECHNICAL SERVICES DIVISION, KARNATAKA ENGINEERING RESEARCH STATION, KRISHNARAJA SAGARA (Purchaser) invites tenders from eligible tenderers for the supply of the goods listed below:

Supply of Microprocessor Flame Photometer to water quality lab
located at KERS,K.R.Sagara for the year 2020-21 Under NHP

2. The tenderers may submit tenders for the goods given above. **Tenderers are advised to note the qualification criteria specified in Section VII to qualify for award of the contract.**
3. **Tender documents may be downloaded from Government of Karnataka e-Procurement website <https://eproc.karnataka.gov.in/eportal/index.seam> under login for Contractors:**



After login to Contractors, Please scroll down to the right side bottom to see List of Tenders, Please click there to find the details of NIT and download copy of the tender. The tender can be downloaded in the portal as per prescribed date and time published in the portal. Only Interested Contractors who wish to participate should remit online transaction fee for tender after registering in the portal. The transaction fee is non-refundable if you wish to participate.



3. Tenders must be accompanied by earnest money deposit which will be paid online through e-Procurement portal as mentioned. Tenders must be accompanied by the earnest money deposit specified for the work in the table below. Earnest money deposit will have to be in any of the forms as per the instructions in the e-procurement portal and shall have to be valid for 45 days beyond the validity of the tender.

4 Tenders must be electronically submitted (on-line through internet) with in the date and time published in e-procurement portal. Tenders will be opened at prescribed time and date in the e-procurement portal.

5. Other details can be seen in the tender documents.

TABLE

Package No.	Name of work	Approximate Value of work including GST (in RS.)	Earnest Money Deposit (Rs.)	Tender Processing Fee (Non-refundable) (Rs.)	Time for Supply
1	<u>Supply of Microprocessor Flame Photometer to water quality lab located at KERS,K.R.Sagara for the year 2020-21. Under NHP</u>	64900/-	1700/-	As per E - procurement	30 days

Chief Research Officer,
Technical Services Division.
K.E.R.S., K.R.Sagara.

SECTION II: INSTRUCTIONS TO TENDERERS**TABLE OF CLAUSES**

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SECTION II: INSTRUCTIONS TO TENDERERS

A. Introduction

1. Eligible Tenderers

- 1.1 Bidders shall not be under a declaration of ineligibility for corrupt and fraudulent practices issued by Government of Karnataka

B. The Tender Documents

2. Contents of Tender Documents

- 2.1 The goods required, tendering procedures and contract terms are prescribed in the tender documents. In addition to the Invitation for Tenders, the tender documents include:
- (a) Instruction to Tenderers (ITT) ;
 - (b) General Conditions of Contract (GCC) ;
 - (c) Special Conditions of Contract (SCC) ;
 - (d) Schedule of Requirements;
 - (e) Technical Specifications;
 - (f) Tender Form and Price Schedules;
 - (g) Earnest money deposit Form;
 - (h) Contract Form;
 - (i) Performance Security Form;
 - (k) Manufacturer's Authorization/Guarantee Form
- 2.2 The Tenderer is expected to examine all instructions, forms, terms, and specifications in the tender documents. Failure to furnish all information required by the tender documents or submission of a tender not substantially responsive to the tender documents in every respect will be at the Tenderer's risk and may result in rejection of its tender.

3. Amendment of Tender Documents

- 3.1 At any time prior to the deadline for submission of tenders, the Purchaser may, for any reason, whether at its own initiative or otherwise, modify the tender documents by amendment.
- 3.2 All prospective tenderers who have received the tender documents will be notified of the amendment in writing or by cable or by fax, and will be binding on them.
- 3.3 In order to allow prospective tenderers reasonable time in which to take the amendment into account in preparing their tenders, the Purchaser, at its discretion, may extend the deadline for the submission of tenders.

C. Preparation of Tenders

4. Language of Tender

- 4.1 The tender prepared by the Tenderer, as well as all correspondence and documents relating to the tender exchanged by the Tenderer and the Purchaser, shall be written in Kannada language. Supporting documents and

printed literature furnished by the Tenderer may be in another language provided they are accompanied by an accurate translation of the relevant passages in Kannada language in which case, for purposes of interpretation of the Tender, the translation shall govern.

5. Documents Comprising the Tender

5.1 The tender prepared by the Tenderer shall comprise the following components:

- (a) A Tender Form and a Price Schedule completed in accordance with ITT Clauses 6, 7 and 8;
- (b) Documentary evidence established in accordance with ITT Clause 9 that the Tenderer is eligible to tender and is qualified to perform the contract if its tender is accepted;
- (c) Documentary evidence established in accordance with ITT Clause 10 that the goods and ancillary services to be supplied by the tenderer conform to the tender document: and
- (d) Earnest money deposit furnished in accordance with ITT Clause 11.

6 Tender Form

6.1 The Tenderer shall complete the Tender Form and the Price Schedule furnished in the tender documents, indicating the goods to be supplied, a brief description of the goods, quantity and prices.

7. Tender Prices

7.1 The Tenderer shall indicate on the Price Schedule the unit prices and total tender prices of the goods it proposes to supply under the Contract. To this end, the tenderers are allowed the option to submit the tenders for any one or more schedules specified in the 'Schedule of Requirements' and to offer discounts for combined schedules. However, tenderers shall quote for the complete requirement of goods and services specified under each schedule on a single responsibility basis, failing which such tenders will not be taken into account for evaluation and will not be considered for award

7.2 Prices indicated on the Price Schedule shall be entered separately in the following manner:

- (i) the price of the goods, quoted (ex-works, ex-factory, ex-showroom, ex-warehouse, or off-the-shelf, as applicable), including all duties and sales and other taxes already paid or payable
 - a. on components and raw material used in the manufacture or assembly of goods quoted ex-works or ex-factory; or
 - b. on the previously imported goods of foreign origin quoted ex-showroom, ex-warehouse or off-the-shelf.
- (ii) any Indian duties, sales and other taxes which will be payable on the goods if this Contract is awarded;
- (iii) the price for inland transportation, insurance and other local costs incidental to delivery of the goods to their final destination; and
- (iv) the price of other incidental services listed in Clause 4 of the Special Conditions of Contract

- 7.3 Prices quoted by the Tenderer shall be fixed during the Tenderer's performance of the Contract and not subject to variation on any account. A tender submitted with an adjustable price quotation will be treated as non-responsive and rejected, pursuant to ITT Clause 19.

8. Tender Currency

- 8.1 Prices shall be quoted in Indian Rupees:

9. Documents Establishing Tenderer's Eligibility and Qualifications

- 9.1 Pursuant to ITT Clause 5, the Tenderer shall furnish, as part of its Tender, documents establishing the Tenderer's eligibility to tender and its qualifications to perform the Contract if its tender is accepted
- 9.2 The documentary evidence of the Tenderer's qualifications to perform the Contract if its tender is accepted, shall establish to the Purchaser's satisfaction:
- (a) that, in the case of a Tenderer offering to supply goods under the contract which the Tenderer did not manufacture or otherwise produce, the Tenderer has been duly authorized (as per authorization form in Section XIII) by the goods' Manufacturer or producer to supply the goods in India or is a Authorized Dealer of the Goods.
(The item or items for which Manufacturer's Authorization is required should be specified)
 - (b) that the Tenderer has the financial, technical, and production capability necessary to perform the Contract and meets the criteria outlined in the Qualification requirements specified in Section VII.

10. Documents Establishing Goods' Conformity to Tender Documents

- 10.1 Pursuant to ITB Clause 5, the Tenderer shall furnish, as part of its tender, documents establishing the conformity to the tender documents of all goods and services which the tenderer proposes to supply under the contract..
- 10.2 The documentary evidence of conformity of the goods and services to the tender documents may be in the form of literature, drawings and data, and shall consist of :
- (a) A detailed description of the essential technical and performance characteristics of the goods ;
 - (b) A list giving full particulars, including available sources and current prices, of spare parts, special tools, etc., necessary for the proper and continuing functioning of the goods for a period of two years, following commencement of the use of the goods by the Purchaser;

11. Earnest Money Deposit

- 11.1 Pursuant to ITT Clause 5, the Tenderer shall furnish, as part of its tender, earnest money deposit in the amount as specified in Section-V - Schedule of Requirements.

11.2 The earnest money deposit is required to protect the Purchaser against the risk of Tenderer's conduct which would warrant the security's forfeiture, pursuant to ITB Clause 11.7.

11.3 The earnest money deposit shall be denominated in Indian Rupees

11.4 Tender Transaction fee and Earnest Money Deposit:

The supplier/contractor can pay the Earnest Money Deposit (EMD) in the e-Procurement portal using any of the following payment modes:

- Credit Card
- Debit Card
- National Electronic Fund Transfer (NEFT)
- Over the Counter (OTC)

OTC payment procedure:

If a contractor/supplier chooses to make payment of EMD/tender processing fees Over The Counter (OTC) in any of the designated Axis Bank branches listed in the e-Procurement web-site (www.eproc.karnataka.gov.in), the contractor/supplier will need to log into e-Procurement system, access the tender for which bid is being created and then select the OTC option under the payment section and print the Challan shown in that section. The printed challan will have the unique bid reference number and the amount to be remitted. Along with the challan, contractor can choose to make the payment either in the form of cash or in the form of Demand Draft. Cheque payments will not be accepted. The contractor is requested to specifically inform the bank officer to input the unique bid reference number printed in the challan in the banking software. Upon successful receipt of the payment, the bank will provide a 16-digit reference number acknowledging the receipt of payment. This 16-digit reference number has to be inputted by contractor in the payment section of its bid as payment confirmation before the bid is submitted (i.e.) as a pre-requisite for bid submission.

NEFT payment procedure:

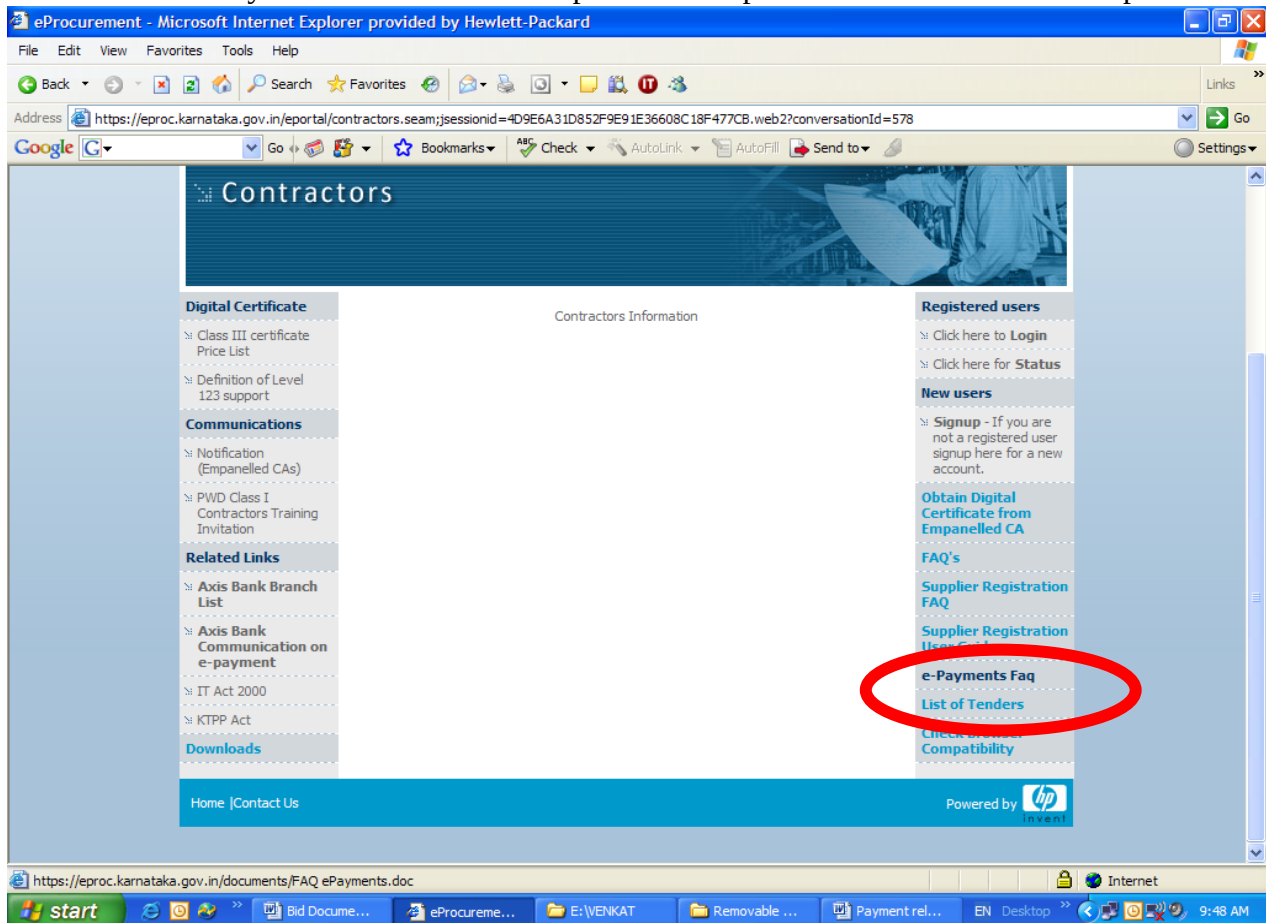
If a contractor/supplier chooses to make payment of EMD/tender processing fees using Reserve Bank of India's (RBI) National Electronic Fund Transfer (NEFT) system, the contractor/supplier will need to log into e-Procurement system, access the tender for which bid is being created and then select the NEFT option under the payment section and print the Challan shown in that section. The printed challan will have the unique bid reference number, account details of Government of Karnataka and the amount to be remitted. The contractor has to submit the printed challan to its bank-branch (NEFT-enabled) and request for an account-to-account transfer, wherein the money will get transferred from the contractors' bank account to GoK's bank account. The contractor should ensure that NEFT transfer instructions are executed and the funds are wired to the Government of Karnataka's principal account before the last date for bid submission and preferably 24 hours before the last date for bid submission. If the contractor's bank transfers/wires the money after the last date for bid submission, the contractor's bid will be liable for rejection. Upon executing the transfer, the contractor's bank will provide a reference number generated by NEFT software as confirmation of transfer, which has to be inputted by contractor in the payment section of its bid as payment confirmation before the bid is submitted

(i.e.) as a pre-requisite for bid submission. Also, the account number from which the funds were transferred have to be inputted in the e-Procurement system as part of its bid.

The supplier/contractor's bid will be evaluated only on confirmation of receipt of the payment (EMD) in the Government of Karnataka central pooling a/c held at Bank. EMD amount will have to be submitted by the supplier/contractor taking into account the following conditions:

- a. EMD will be accepted only in the form of electronic cash (and not through Demand Draft or Bank Guarantee) and will be maintained in the Govt.'s central pooling account at Bank until the contract is closed.
- b. The entire EMD amount for a particular tender has to be paid in a single transaction

For details on e-Payment services refer to e-procurement portal for more details on the process.



Note: In e-Procurement Portal Contractor has the option of withdrawing the Bid by digitally signing to withdraw/can cell bid before the bid submission time /Date.

11.5 Instruments having fixed validity issued as earnest money deposit for the tender shall be valid for 45 days beyond the validity of the tender.

11.6 Any tender not accompanied by an acceptable earnest money deposit and not secured as indicated in Sub-Clauses 11.4 and 11.5 above shall be rejected by the Employer as non-responsive.

- 11.7 The earnest money deposit of unsuccessful tenderers will be returned within 30 days of the end of the tender validity period specified in Sub-Clause 12.1.
- 11.8 The earnest money deposit of the successful Tenderer will be discharged when the Tenderer has signed the Agreement and furnished the required Performance Security.
- 11.9 The earnest money deposit may be forfeited:
- (a) if the Tenderer withdraws the Tender after tender opening during the period of tender validity;
 - (b) if the Tenderer does not accept the correction of the Tender Price, pursuant to Clause 19;
- or
- (c) in the case of a successful Tenderer, if the Tenderer fails within the specified time limit to
 - (i) sign the Agreement; or
 - (ii) furnish the required Security deposit

12. Period of Validity of Tenders

- 12.1 Tenders shall remain valid for 90 days after the deadline for submission of tenders prescribed by the Purchaser, pursuant to ITB Clause 15. A tender valid for a shorter period shall be rejected by the Purchaser as non-responsive.
- 12.2 In exceptional circumstances, the Purchaser may solicit the Tenderer's consent to an extension of the period of validity. The request and the responses thereto shall be made in writing (or by cable or fax). The earnest money deposit provided under ITT Clause 11 shall also be suitably extended. A Tenderer may refuse the request without forfeiting its earnest money deposit. A Tenderer granting the request will not be required nor permitted to modify its tender.

13. Format and Signing of Tender-(Not Applicable)

- 13.1 The Tenderer shall prepare two copies of the tender, clearly marking each "Original Tender" and "Copy Tender", as appropriate. In the event of any discrepancy between them, the original shall govern.
- 13.2 The original and all copies of the tender shall be typed or written in indelible ink and shall be signed by the Tenderer or a person or persons duly authorized to bind the tenderer to the Contract. The latter authorization shall be indicated by written power-of-attorney accompanying the tender. All pages of the tender, except for unamended printed literature, shall be initialed by the person or persons signing the tender.
- 13.3 Any interlineations, erasures or overwriting shall be valid only if they are initialed by the persons or persons signing the tender.

D. Submission of Tenders

14. Sealing and Marking of Tenders

Tenderer shall submit the Bid electronically before the submission date and time published in e procurement portal.

- ~~14. The Tenderers shall seal the original and each copy of the tender in separate inner envelopes, duly marking the envelopes as "original" and "copy". He shall then place all the inner envelopes in an outer envelope.-(Not Applicable)~~

~~14.1 The inner and outer envelopes shall:~~

~~(a) be addressed to the Purchaser at the following address:~~

~~15. bear the Project Name, the Invitation for Tenders (IFT) title and number, and a statement "Do not open before _____ hours on _____."--(Not Applicable)~~

~~16. The inner envelopes shall also indicate the name and address of the Tenderer to enable the tender to be returned unopened in case it is declared "late".--(Not Applicable)~~

~~17. If the outer envelope is not sealed and marked as required by ITT Clause 14.2, the Purchaser will assume no responsibility for the tender's misplacement or premature opening.--(Not Applicable)~~

~~18. Cable or facsimile tenders will be rejected. --(Not Applicable)~~

15. Deadline for Submission of Tenders

15.1 Tenders must be submitted online in the e Procurement portal to the Employer on or before the time & date specified in e-procurement portal.

15.2 The Employer may extend the deadline for submission of tenders by issuing an amendment in accordance with Clause 3, in which case all rights and obligations of the Employer and the Tenderers previously subject to the original deadline will then be subject to the new deadline.

16. Late Tenders

16.1 In online e procurement system, you shall not be able to submit the bid after the bid submission time and date as the icon or the task in the e procurement portal will not be available.

17. Modification and Withdrawal of Tenders

Tenderer has all the time to modify and correct or upload any relevant document in the portal till Bid submission date and time, as published in the e procurement portal.

17.1 The Tenderer may modify or withdraw its tender after the tender's submission, provided that written notice of the modification or withdrawal is received by the Purchaser prior to the deadline prescribed for submission of tenders.

~~17.2 The Tenderer's modification or withdrawal notice shall be prepared, sealed, marked and dispatched in accordance with the provisions of ITT Clause 14. A withdrawal notice may also be sent by telex or cable or fax but followed by a signed confirmation copy, post marked not later than the deadline for submission of tenders.--(Not Applicable)~~

17.3 No tender may be modified subsequent to the deadline for submission of tenders.

- 17.4 No tender may be withdrawn in the interval between the deadline for submission of tenders and the expiration of the period of tender validity specified by the Tenderer on the Tender Form. Withdrawal of a tender during this interval may result in the Tenderer's forfeiture of its earnest money deposit, pursuant to ITT Clause 11.7.

E. Tender Opening and Evaluation of Tenders

18. Opening of Tenders by the Purchaser

- 18.1 The Employer will open all the Tenders received (~~except those received late~~), including modifications made pursuant to Clause 14, in the presence of the Tenderers or their representatives who choose to attend at **the time, date and the place as notified in e-procurement portal**. In the event of the specified date of Tender opening being declared a holiday for the Employer, the Tenders will be opened at the appointed time and location on the next working day.
- 18.2 The Tenderers' names, tender modifications or withdrawals, tender prices, discounts, and the presence or absence of requisite tender security and such other details as the Purchaser, at its discretion, may consider appropriate, will be announced at the opening. ~~No tender shall be rejected at tender opening, except for late tenders, which shall be returned unopened to the Tenderer pursuant to ITT Clause 16.~~
- 18.3 ~~Tenders (and modifications sent pursuant to ITT Clause 17.2) that are not opened and read out at tender opening shall not be considered further for evaluation, irrespective of the circumstances. (Not Applicable)~~
- 18.4 The Purchaser will prepare minutes of the tender opening.

19. Preliminary Examination

- 19.1 The Purchaser will examine the tenders to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, and whether the tenders are generally in order. Tenders from Agents/Authorized Dealers, without proper authorization from the manufacturer as per Section XIII, shall be treated as non-responsive.
- 19.2 Where the Tenderer has quoted for more than one schedule, if the earnest money deposit furnished is inadequate for all the schedules, the Purchaser shall take the price tender into account only to the extent the tender is secured. For this purpose, the extent to which the tender is secured shall be determined by evaluating the requirement of earnest money deposit to be furnished for the schedule included in the tender (offer) in the serial order of the Schedule of Requirements of the Tender document.
- 19.3 Arithmetical errors will be rectified on the following basis. If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If there is a

discrepancy between words and figures, the lower of the two will prevail. If the supplier does not accept the correction of errors, its tender will be rejected and its earnest money deposit may be forfeited.

- 19.4 The Purchaser may waive any minor informality or non-conformity or irregularity in a tender which does not constitute a material deviation, provided such a waiver does not prejudice or affect the relative ranking of any Tenderer.
- 19.5 Prior to the detailed evaluation, pursuant to ITT Clause 20, the Purchaser will determine the substantial responsiveness of each tender to the tender documents. For purposes of these Clauses, a substantially responsive tender is one which conforms to all the terms and conditions of the tender documents without material deviations. Deviations from or objections or reservations to critical provisions such as those concerning Performance Security (GCC Clause 4). Warranty (GCC Clause 12), Applicable law (GCC Clause 19), and Taxes & Duties (GCC Clause 21) will be deemed to be a material deviation. The Purchaser's determination of a tender's responsiveness is to be based on the contents of the tender itself without recourse to extrinsic evidence.
- 19.6 If a tender is not substantially responsive, it will be rejected by the Purchaser and may not subsequently be made responsive by the Tenderer by correction of the non-conformity.

20. Evaluation and Comparison of Tenders

- 20.1 The Purchaser will evaluate and compare the tenders which have been determined to be substantially responsive, pursuant to ITT Clause 7 for each schedule separately. No tender will be considered if the complete requirements covered in the schedule is not included in the tender. However, as stated in ITT Clause 7, Tenderers are allowed the option to tender for any one or more schedules and to offer discounts for combined schedules. These discounts will be taken into account in the evaluation of the tenders so as to determine the tender or combination of tenders offering the lowest evaluated cost for the Purchaser in deciding award(s) for each schedule.
- 20.2 The Purchaser's evaluation of a tender will take into account in the case of goods manufactured in India or goods of foreign origin already located in India, sales and other similar taxes, which will be payable on the goods if a contract is awarded to the Tenderer;
- 20.3 The Purchaser's evaluation of a tender will take into account, in addition to the tender price (Ex-factory/ex-warehouse/off-the-shelf price of the goods, such price to include all costs as well as duties and taxes paid or payable on components and raw material incorporated or to be incorporated in the goods, and Excise duty on the finished goods, if payable) and price of incidental services, the following factors, in the manner and to the extent indicated in ITT Clause 20.4 and in the Technical Specifications:
 - (a) cost of inland transportation, insurance and other costs within India incidental to the delivery of the goods to their final destination
 - (b) the cost of components, mandatory spare parts and service;

20.4 Pursuant to ITT Clause 20.3, one or more of the following evaluation methods will be applied:

(a) *Inland Transportation, Insurance and Incidentals:*

- (i) Inland transportation, insurance and other incidentals for delivery of goods to the final destination as stated in ITT Clause 7.2 (iii).

The above costs will be added to the tender price.

(b) *Cost of Components, mandatory Spare Parts and Services:*

- (i) Appendix to the Technical Specifications lists the items and quantities of major assemblies, components and selected items of spare parts, likely to be required during the initial year period of operation of the equipment. The total cost of these items and quantities at the unit prices quoted in each bid will be added to the tender price.

F. Award of Contract

21. Postqualification

- 21.1 The Purchaser will determine to its satisfaction whether the Tenderer that is selected as having submitted the lowest evaluated responsive tender meets the criteria specified in ITT Clause 9.2 (b) and is qualified to perform the contract satisfactorily.
- 21.2 The determination will take into account the Tenderer's financial, technical and production capabilities. It will be based upon an examination of the documentary evidence of the Tenderer's qualifications submitted by the Tenderer, pursuant to ITT Clause 9, as well as such other information as the Purchaser deems necessary and appropriate.
- 21.3 An affirmative determination will be a prerequisite for award of the Contract to the Tenderer. A negative determination will result in rejection of the Tenderer's tender, in which event the Purchaser will proceed to the next lowest evaluated tender to make a similar determination of that Tenderer's capabilities to perform the contract satisfactorily.

22. Award Criteria

- 22.1 Subject to ITT Clause 24, the Purchaser will award the Contract to the successful Tenderer whose tender has been determined to be substantially responsive and has been determined as the lowest evaluated tender, provided further that the Tenderer is determined to be qualified to perform the Contract satisfactorily.

23. Purchaser's right to vary Quantities at Time of Award

- 23.1 The Purchaser reserves the right at the time of Contract award to increase or decrease by up to 25 percent of the quantity of goods and services originally specified in the Schedule of Requirements without any change in unit price or other terms and conditions.

24. Purchaser's Right to Accept Any Tender and to Reject Any or All Tenders

- 24.1 The Purchaser reserves the right to accept or reject any tender, and to annul the tendering process and reject all tenders at any time prior to contract award, without thereby incurring any liability to the affected Tenderer or Tenderers.

25. Notification of Award

- 25.1 Prior to the expiration of the period of tender validity, the Purchaser will notify the successful tenderer in writing by registered letter or by cable/telex or fax, to be confirmed in writing by registered letter, that its tender has been accepted.
- 25.2 The notification of award will constitute the formation of the contract.
- 25.3 Upon the successful Tenderer's furnishing of performance security pursuant to ITT Clause 27, the Purchaser will promptly notify the name of the winning Tenderer to each unsuccessful Tenderer and will discharge its earnest money deposit, pursuant to ITT Clause 11.
- 25.4 If, after notification of award, a Tenderer wishes to ascertain the grounds on which its tender was not selected, it should address its request to the Purchaser. The Purchaser will promptly respond in writing to the unsuccessful Tenderer.

26. Signing of Contract

- 26.1 At the same time as the Purchaser notifies the successful tenderer that its tender has been accepted, the Purchaser will send the Tenderer the Contract Form provided in the tender documents, incorporating all agreements between the parties.
- 26.2 Within 21 days of receipt of the Contract Form, the successful Tenderer shall sign and date the Contract and return it to the Purchaser.

27. Performance Security

- 27.1 Within 21 days of the receipt of notification of award from the Purchaser, the successful Tenderer shall furnish the performance security in accordance with the Conditions of Contract, in the Performance Security Form provided in the tender documents or in another form acceptable to the Purchaser.
- 27.2 Failure of the successful Tenderer to comply with the requirement of ITT Clause 26.2 or ITT Clause 27.1 shall constitute sufficient grounds for the annulment of the award and forfeiture of the earnest money deposit, in which event the Purchaser may make the award to the next lowest evaluated Tenderer or call for new tenders.

SECTION III: GENERAL CONDITIONS OF
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SECTION III: GENERAL CONDITIONS OF CONTRACT

General Conditions of Contract

1. Definitions

1.1 In this Contract, the following terms shall be interpreted as indicated:

- (a) "The Contract" means the agreement entered into between the Purchaser and the Supplier, as recorded in the Contract Form signed by the parties, including all the attachments and appendices thereto and all documents incorporated by reference therein;
- (b) "The Contract Price" means the price payable to the Supplier under the Contract for the full and proper performance of its contractual obligations;
- (c) "The Goods" means all the equipment, machinery, and/or other materials which the Supplier is required to supply to the Purchaser under the Contract;
- (d) "Services" means services ancillary to the supply of the Goods, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training and other obligations of the Supplier covered under the Contract;
- (e) "GCC" means the General Conditions of Contract contained in this section.
- (f) "SCC" means the Special Conditions of Contract.
- (g) "The Purchaser" means the organization purchasing the Goods, as named in SCC.
- (h) "The Supplier" means the individual or firm supplying the Goods and Services under this Contract.
- (i) "The Government" means the Government of Karnataka State.
- (j) "The State" means the Karnataka State
- (k) "The Project Site", where applicable, means the place or places named in SCC.
- (l) "Day" means calendar day.

2. Application

2.1 These General Conditions shall apply to the extent that they are not superseded by provisions in other parts of the Contract.

3. Standards

3.1 The Goods supplied under this Contract shall conform to the standards mentioned in the Technical Specifications, and, when no applicable standard is mentioned, to the authoritative standard appropriate to the Goods' country of origin and such standards shall be the latest issued by the concerned institution.

4. Performance Security

- 4.1 Within 21 days of receipt of the notification of contract award, the Supplier shall furnish Performance Security to the Purchaser for an amount of 5% of the Contract Value, valid up to 60 days after the date of completion of performance obligations including Warranty obligations. In the event of any correction of defects or replacement of defective material during the Warranty period, the Warranty for the corrected/replaced material shall be extended to a further period of 12 months and the Performance Bank Guarantee for proportionate value shall be extended 60 days over and above the initial Warranty period.
- 4.2 The proceeds of the performance security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract.
- 4.3 The Performance Security shall be denominated in Indian Rupees and shall be in one of the following forms:
 - (a) A Bank guarantee, issued by a nationalized/scheduled bank in the form provided in the tender documents or another form acceptable to the Purchaser; or
 - (b) A cashier's check or Banker's certified check, or crossed demand draft or pay order drawn in favour of the Purchaser.; or
 - (c) Specified small savings instruments duly pledged to the Purchaser.
- 4.4 The Performance Security will be discharged by the Purchaser and returned to the Supplier not later than 60 days following the date of completion of the Supplier's performance obligations, including any Warranty obligations, under the Contract.
- 4.5 In the event of any contract amendment, the Supplier shall, within 20 days of receipt of such amendment, furnish the amendment to the Performance Security, rendering the same valid for the duration of the Contract as amended for 60 days after the completion of performance obligations including Warranty obligations.

5. Inspections and Tests

- 5.1 The Purchaser or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Contract specifications at no extra cost to the Purchaser. SCC and the Technical Specifications shall specify what inspections and tests the Purchaser requires and where they are to be conducted. The Purchaser shall notify the Supplier in writing in a timely manner of the identity of any representatives retained for these purposes.
- 5.2 Should any inspected or tested Goods fail to conform to the specifications, the Purchaser may reject the goods and the Supplier shall either replace the rejected Goods or make alterations necessary to meet specification requirements free of cost to the Purchaser.
- 5.3 Nothing in GCC Clause 5 shall in any way release the Supplier from any warranty or other obligations under this Contract.

6. Packing

- 6.1 The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination as indicated in the Contract. The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit and open storage.

7. Delivery and Documents

- 7.1 Delivery of the Goods shall be made by the Supplier in accordance with the terms specified by the Purchaser in the Notification of Award along with supporting documents.

8. Insurance

- 8.1 The Goods supplied under the Contract shall be fully insured against loss or damage during transportation, storage and delivery. .

9. Transportation

- 9.1 Where the Supplier is required under the Contract to transport the Goods to a specified place of destination within the State defined as Project site, transport to such place of destination in State including insurance, as shall be specified in the Contract, shall be arranged by the Supplier, and the related cost shall be included in the Contract Price

10. Incidental Services

- 10.1 The supplier may be required to provide any or all of the following services, including additional services, if any, specified in SCC:

- (a) performance or supervision of the on-site assembly and/or start-up of the supplied Goods;
- (b) furnishing of tools required for assembly and/or maintenance of the supplied Goods;
- (c) furnishing of detailed operations and maintenance manual for each appropriate unit of supplied Goods;
- (d) performance or supervision or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract; and
- (e) training of the Purchaser's personnel, at the Supplier's plant and/or on-site, in assembly, start-up, operation, maintenance and/or repair of the supplied Goods.

- 10.2 Prices charged by the Supplier for incidental services, shall be included in the Contract Price for the Goods.

11. Spare Parts

- 11.1 As specified in the SCC, the Supplier may be required to provide , notifications, and information pertaining to spare parts manufactured or distributed by the Supplier, such spare parts as the Purchaser may elect to purchase from the Supplier, providing that this election shall not relieve the Supplier of any warranty obligations under the Contract; and

- 11.2 The Supplier shall carry sufficient inventories to assure ex-stock supply of consumable spares for the Goods, such as gaskets, plugs, washers, belts etc. Other spare parts and

components shall be supplied as promptly as possible but in any case within 3 months of placement of order.

12. Warranty

12.1 The Supplier warrants that the Goods supplied under this Contract are new, unused, of the most recent or current models and that they incorporate all recent improvements in design and materials unless provided otherwise in the Contract. The Supplier further warrants that all Goods supplied under this Contract shall have no defect arising from design, materials or workmanship or from any act or omission of the Supplier, that may develop under normal use of the supplied Goods in the conditions prevailing in the State.

12.2 This warranty shall remain valid for 12 months after the Goods or any portion thereof as the case may be, have been delivered to and accepted at the final destination indicated in the Contract.

13. Payment

13.1 The method and conditions of payment to be made to the Supplier under this Contract shall be specified in the SCC.

13.2 The Supplier's request(s) for payment shall be made to the Purchaser in writing, accompanied by an invoice describing, as appropriate, the Goods delivered and the Services performed, and by documents, submitted pursuant to GCC Clause 7, and upon fulfillment of other obligations stipulated in the contract.

13.3 Payments shall be made promptly by the Purchaser but in no case later than sixty (90) days after submission of the invoice or claim by the Supplier.

13.4 Payment shall be made in Indian Rupees.

14. Prices

14.1 Prices payable to the supplier as stated in the contract shall be firm during the performance of the contract.

15. Contract Amendments

No variation in or modification of the terms of the Contract shall be made except by written amendment signed by the parties.

16. Delays in the Supplier's Performance

16.1 Delivery of the Goods and performance of the Services shall be made by the Supplier in accordance with the time schedule specified by the Purchaser in the Schedule of Requirements.

16.2 If at any time during performance of the Contract, the Supplier or its sub-contractor(s) should encounter conditions impeding timely delivery of the Goods and performance of Services, the Supplier shall promptly notify the Purchaser in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the Supplier's notice, the Purchaser shall evaluate the situation and may, at its discretion, extend the Supplier's time for performance with or without liquidated damages, in which case the extension shall be ratified by the parties by amendment of the Contract.

16.3 A delay by the Supplier in the performance of its delivery obligations shall render the Supplier liable to the imposition of liquidated damages pursuant to GCC Clause 17, unless an extension of time is agreed upon pursuant to GCC Clause 16.2 without the application of liquidated damages.

17. Liquidated Damages

17.1 If the Supplier fails to deliver any or all of the Goods or to perform the Services within the period(s) specified in the Contract, the Purchaser shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to 0.5% of the delivered price of the delayed Goods or unperformed Services for each week or part thereof of delay until actual delivery or performance, up to a maximum deduction of 10% of the Contract Price. Once the maximum is reached, the Purchaser may consider termination of the Contract pursuant to GCC Clause 18.

18. Termination for Default

18.1 The Purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default sent to the Supplier, terminate the Contract in whole or part:

- (a) if the Supplier fails to deliver any or all of the Goods within the period(s) specified in the Contract, or within any extension thereof granted by the Purchaser pursuant to GCC Clause 16; or
- (b) if the Supplier fails to perform any other obligation(s) under the Contract.
- (c) If the Supplier, in the judgement of the Purchaser has engaged in corrupt or fraudulent practices in competing for or in executing the Contract.

18.2 In the event the Purchaser terminates the Contract in whole or in part, pursuant to GCC Clause 18.1, the Purchaser may procure, upon such terms and in such manner as it deems appropriate, Goods or Services similar to those undelivered, and the Supplier shall be liable to the Purchaser for any excess costs for such similar Goods or Services. However, the Supplier shall continue the performance of the Contract to the extent not terminated.

19. Applicable Law

19.1 The Contract shall be interpreted in accordance with the laws of the Union of India.

20. Notices

Any notice given by one party to the other pursuant to this Contract shall be sent to other

20.1 party in writing or by

cable, or facsimile and confirmed in writing to the other Party's address specified in SCC.

A notice shall be effective when delivered or on the notice's effective date, whichever is

20.2 later.

21. Taxes and Duties

21.1 Suppliers shall be entirely responsible for all taxes (including Sales tax), duties, license fees, octroi, road permits, etc., incurred until delivery of the contracted Goods to the Purchaser.

**SECTION IV: SPECIAL CONDITIONS OF
CONTRACT**

TABLE OF CLAUSES

<u>Item No.</u>	<u>Topic</u>	<u>Page Number</u>
1.	Definitions (GCC Clause 1)	19
2.	Inspection and Tests (GCC Clause 5)	19
3.	Delivery and Documents (GCC Clause 7)	19
4.	Incidental Services (GCC Clause 10)	19
5.	Payment (GCC Clause 13)	19
6.	Notices (GCC Clause 20)	20

SECTION IV: SPECIAL CONDITIONS OF CONTRACT

Special Conditions of Contract

The following Special Conditions of Contract shall supplement the General Conditions of Contract. Whenever there is a conflict, the provisions herein shall prevail over those in the General Conditions of Contract. The corresponding clause number of the General Conditions is indicated in parentheses.

1. Definitions (GCC Clause 1)

(a) The Purchaser is CHIEF RESEARCH OFFICER, TECHNICAL SERVICES DIVISION, KARNATAKA ENGINEERING RESEARCH STATION, KRISHNARAJA SAGARA.

(b) The Supplier is

2. Inspection and Tests (GCC Clause 5)

The following inspection procedures and tests are required by the Purchaser:

3. Delivery and Documents (GCC Clause 7)

Upon delivery of the Goods, the supplier shall furnish to the Purchaser the following documents:

- (i) One Original and two Copies of the Supplier invoice showing contract number, goods' description, quantity, unit price, total amount;
- (iii) One Original and two Copies of packing list identifying the contents of each package;
- (iv) Insurance Certificate;
- (v) Manufacturer's/Supplier's warranty certificate;
- (vi) Inspection Certificate issued by the nominated inspection agency, and the Supplier's factory inspection report; and

4. Incidental Services (GCC Clause 10)

The following services covered under Clause 10 shall be furnished and the cost shall be included in the contract price:

5. **Payment (GCC Clause 13)**

Payment will be made according to the availability of funds.

6. **Notices (Clause 20)**

For the purpose of all notices, the following shall be the address of the Purchaser and Supplier.

Purchaser: CHIEF RESEARCH OFFICER,
TECHNICAL SERVICES DIVISION.
KARNATAKA ENGINEERING RESEARCH
STATION, KRISHNARAJA SAGARA

Supplier: (To be filled in at the time of Contract signature)

.....
.....
.....
.....

SECTION V: SCHEDULE OF REQUIREMENTS

<u>Serial Number</u>	<u>Brief Description</u>	<u>Unit</u>	<u>Quantity</u>	<u>Delivery Schedule</u>	<u>EMD in Rupees</u>
1	<u>Supply of Microprocessor Flame Photometer to water quality lab located at KERS,K.R.Sagara for the year 2020-21 Under NHP</u>	No	1	Delivery in 30 days from the date of contract award at destination (Technical Services Division, Karnataka engineering research station, Krishnaraja sagara SRIRANGAPATNA Tq, MANDYA Dist.PIN CODE-571 607)	1700/-

SECTION VI - TECHNICAL SPECIFICATIONS

μ controller based Microprocessor Flame Photometer with Na, K filters and compressor and user friendly with the following features.

1) Elements:

a) Sodium(Na) -

Low conc. Mode (MAX) Without Dilution-**10ppm**

High conc. Mode (MAX) Without Dilution - **100ppm**

b) Potassium (K) -

Low conc. Mode (MAX) Without Dilution-**10ppm**

High conc. Mode (MAX) Without Dilution - **100ppm**

2) Facility of curve fitting correction for non-linear emission characteristics of element.

3) A curve fitting software is to be provided for the High concentrations Mode.

4) Accuracy: $\pm 2.0\%$ of full scale

5) Full scale sensitivity:

Na: 2 ppm

K: 1 ppm

6) Minimum detective unit:

Na: 0.2 ppm

K: 0.1 ppm

7) Filters (10 nm Typical): Na and K

8) Reproducibility: Low Conc.: $\pm 1\%$ f.s ; High Conc.: $\pm 2\%$ f.s.

9) Minimum Sample: Approx 3 ml per element (at avg. Time of 4 Sec)

10) Averaging: 2 to 15 Seconds, Selectable.

11) Aspiration Time: (5 Sec $\pm$ Avg. Time) per element + 4 Sec

12) Operating Air Pressure: 0.45 kg/ cm² (typical)

13) Printer Port: Epson compatible 80 column Dot Matrix

14) RS 232 Port: PC Link data Transfer

15) Air Compressor: With built – in air regular and air filter to deliver stable and moisture/oil free air supply.

16) Fuel Gas: LPG

17) Power Supply: 230 Vac $\pm 10\%$. 50 Hz.

SECTION VII : QUALIFICATION CRITERIA

(Referred to in Clause 9.2 (b) of ITT)

1. (a) The tenderer should be a manufacturer who must have supplied the equipment (s) similar to the type specified in the 'Schedule of Requirements' in any one of the last 3 years. The equipments offered for supply must be of the most recent series models incorporating the latest improvements in design.
- (b) Tenders of tenderers quoting as authorized representative/dealer of a manufacturer, meeting with the above requirement in full, can also be considered provided :
 - (i) the manufacturer furnishes authorization in the prescribed format assuring full guarantee and warranty obligations as per GCC and SCC; and
the tenderer, as authorized representative/dealer, has supplied, installed and commissioned satisfactorily similar to the type specified in the Schedule of Requirements in any one of the last three years. The equipments offered for supply must be of the most recent series models incorporating the latest improvements in design.

SECTION VIII: TENDER FORM

Date :.....

IFT No :.....

TO: (Name and address of purchaser)

Gentlemen and/or Ladies :

Having examined the Tender Documents including Addenda Nos..... *[insert numbers]*, the receipt of which is

hereby duly acknowledged, we, the undersigned, offer to supply and deliver.....

(Description of Goods and Services) in conformity with the said tender documents for the sum of

(Total tender amount in words and figures) or such other sums as may be ascertained in accordance with the

Schedule of Prices attached herewith and made part of this tender.

We undertake, if our tender is accepted, to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements.

If our tender is accepted, we will obtain the guarantee of a bank in a sum equivalent to percent of the Contract

Price for the due performance of the Contract, in the form prescribed by the Purchaser.

We agree to abide by this tender for the Tender validity period specified in Clause 12.1 of the ITT and it shall remain binding upon us and may be accepted at any time before the expiration of that period.

Until a formal contract is prepared and executed, this tender, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.

We undertake that, in competing for (and, if the award is made to us, in executing) the above contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".

We understand that you are not bound to accept the lowest or any tender you may receive.

We clarify/confirm that we comply with the eligibility requirements as per ITT Clause 1 of the tender documents.

Dated thisday of 19

(signature)

of)

Duly authorized to sign Tender for and on behalf of

(in the capacity

PRICE SCHEDULE

Schedule No.	Item Description	Quantity and Unit	Price for each Unit					Total Price 3x8
			Ex-factory/ Ex-warehouse/Ex-showroom/off the shelf	Excise duty if any	Inland transportation, insurance and other local costs incidental to delivery	Sales and other taxes payable if contract awarded	Unit Price (4+5+6+7)	
1	2	3	4	5	6	7	8	9
1	Microcontroller based Microprocessor Flame Photometer with Na, K filters and compressor and user friendly with the following features. 1) Elements: a) Sodium(Na)- Low conc. Mode (MAX) Without Dilution-10ppm High conc. Mode (MAX) Without Dilution - 100ppm b) Potassium (K)- Low conc. Mode (MAX) Without Dilution-10ppm High conc. Mode (MAX) Without Dilution - 100ppm 2) Facility of curve fitting correction for non-linear emission characteristics of element. 3) A curve fitting software is to be provided for the High concentrations Mode. 4) Accuracy: $\pm 2.0\%$ of full scale							

5) Full scale sensitivity: Na: 2 ppm K: 1 ppm 6) Minimum detective unit: Na: 0.2 ppm K: 0.1 ppm 7) Filters (10 nm Typical): Na and K 8) Reproducibility: Low Conc.: $\pm 1\%$ f.s; High Conc.: $\pm 2\%$ f.s. 9) Minimum Sample: Approx 3 ml per element (at avg. Time of 4 Sec.) 10) Averaging: 2 to 15 Seconds, Selectable. 11) Aspiration Time: (5 Sec $\pm$ Avg. Time) per element + 4 Sec 12) Operating Air Pressure: 0.45 kg/ cm ² (typical) 13) Printer Port: Epson compatible 80 column Dot Matrix 14) RS 232 Port: PC Link data Transfer 15) Air Compressor: With built – in air regular and air filter to deliver stable and moisture/oil free air supply. 16) Fuel Gas: LPG 17) Power Supply: 230 Vac $\pm 10\%$. 50 Hz.							
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Note: In case of discrepancy between unit price and total price, the unit price will prevail

Total tender price in Rs
(Words).....

.....
.....

Signature of Tenderer
.....

Name and address:
.....

SECTION X: CONTRACT FORM

THIS AGREEMENT
 made theday, 20... Between (Name
 purchaser) of of
 of (Country of (hereinafter called "the Purchaser") of the one
 Purchaser) part and
 (Name of of (City and Country of (hereinafter called
 ... Supplier) Supplier) "the
 Supplier") of the other part
 :

WHEREAS the Purchaser is desirous that certain Goods and ancillary services viz.,
 (Brief
 Description of Goods and Services) and has accepted a tender by the Supplier for the supply of
 those goods and
 services in the sum of (Contract Price in Words and Figures) (hereinafter
 called "the Contract
 Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.
2. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:
 - (a) the Tender Form and the Price Schedule submitted by the Tenderer;
 - (b) the Schedule of Requirements;
 - (c) the Technical Specifications;
 - (d) the General Conditions of Contract;
 - (e) the Special Conditions of Contract; and
 - (f) the Purchaser's Notification of Award.
3. In consideration of the payments to be made by the Purchaser to the Supplier as hereinafter mentioned, the Supplier hereby covenants with the Purchaser to provide the goods and services and to remedy defects therein in conformity in all respects with the provisions of the Contract.
4. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods and services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

Brief particulars of the goods and services which shall be supplied/provided by the Supplier are as under:

Contractor

DELIVERY SCHEDULE:

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, Sealed and Delivered by the

said (For the Purchaser)

in the presence of:.....

Signed, Sealed and Delivered by the

said (For the Supplier)

in the presence of:.....

SECTION XIII:- MANUFACTURERS'**AUTHORIZATION FORM***

(Please see Clause 9.2 (a) of Instructions to Tenderers)

No. _____ dated

To

Dear Sir:

IFT No.

who are established and reputable

We _____ manufacturers of _____ (address
 _____ (name and description of goods offered) having factories at _____
 of factory) do state that:

(a) M/ _____ (Name and address of Agent) is hereby authorized to submit a
 s _____ tender, and sign
 the contract with you for the goods manufactured by us against the above IFT;

OR

(b) M/s ----- (Name and address of the Authorized Dealer) is our
 accredited/authorized Dealer

We hereby extend our full guarantee and warranty as per Clause 12 of the General
 Conditions of Contract for the goods and services offered for supply by the above firm against
 this IFT.

Yours faithfully,

(Name)

(Name of manufacturers)

PRICE SCHEDULE OF MICROPROCESSOR FLAME PHOTOMETER

Schedule No.	Item Description	Quantity and Unit	Price for each Unit					Total Price 3x8
			Ex-factory/ Ex-warehouse/ Ex-showroom/off the shelf	Excise duty if any	Inland transportation, insurance and other local costs incidental to delivery	Sales and other taxes payable if contract awarded	Unit Price (4+5+6+7)	
1	2	3	4	5	6	7	8	9
1	Microcontroller based Microprocessor Flame Photometer with Na, K filters and compressor and user friendly with the following features. 1) Elements: a) Sodium(Na)- Low conc. Mode (MAX) Without Dilution-10ppm High conc. Mode (MAX) Without Dilution - 100ppm b) Potassium (K)- Low conc. Mode (MAX) Without Dilution-10ppm High conc. Mode (MAX) Without Dilution - 100ppm 2) Facility of curve fitting correction for non-linear emission characteristics of element. 3) A curve fitting software is to be provided for the High concentrations Mode. 4) Accuracy: ± 2.0% of full scale 5) Full scale sensitivity: Na: 2 ppm K: 1 ppm							

6) Minimum detective unit: Na: 0.2 ppm K: 0.1 ppm 7) Filters (10 nm Typical): Na and K 8) Reproducibility: Low Conc.: ± 1% f.s; High Conc.: ± 2% f.s. 9) Minimum Sample: Approx 3 ml per element (at avg. Time of 4 Sec.) 10) Averaging: 2 to 15 Seconds, Selectable. 11) Aspiration Time: (5 Sec ± Avg. Time) per element + 4 Sec 12) Operating Air Pressure: 0.45 kg/ cm ² (typical) 13) Printer Port: Epson compatible 80 column Dot Matrix 14) RS 232 Port: PC Link data Transfer 15) Air Compressor: With built – in air regular and air filter to deliver stable and moisture/oil free air supply. 16) Fuel Gas: LPG 17) Power Supply: 230 Vac ± 10%. 50 Hz.							
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Note: In case of discrepancy between unit price and total price, the unit price will prevail

Total tender price in Rs (Words).....

.....

Signature of Tenderer

Name and address:

TECHNICAL SPECIFICATIONS OF MICROPROCESSOR FLAME PHOTOMETER

μ controller based Microprocessor Flame Photometer with Na, K filters and compressor and user friendly with the following features.

1) Elements:

a) Sodium(Na) -

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17) Power Supply: 230 Vac $\pm 10\%$. 50 Hz.